

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE ENROLLED ACT No. 191

AN ACT to amend the Indiana Code concerning property.

Be it enacted by the General Assembly of the State of Indiana:

SECTION 1. IC 32-21-2.5-8, AS AMENDED BY P.L.26-2022, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 8. (a) As used in this section, "paper document" or "paper documents" means a tangible record that is received by a county recorder in a form that is not electronic.

(b) ~~On or before July 1, 2022;~~ A county recorder shall receive for recording, indexing, storage, archiving, access to, searching of, retrieval, and transmittal all electronic documents proper for recording. A county recorder shall also accept electronically any fee or tax that the county recorder is authorized to collect under applicable laws. A county recorder shall implement the processing of electronic documents proper for recording in compliance with:

- (1) this article;
- (2) IC 33-42;
- (3) IC 36-2-7.5;
- (4) IC 36-2-11; and
- (5) IC 36-2-13; ~~and~~

and the standards adopted by the electronic recording commission created under section 9 of this chapter.

(c) This section does not apply to the following documents:

- (1) A military discharge under IC 10-17-2.
- (2) A survey of real property.

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(3) A plat of real property.

(4) A document containing the identifying information of a participant in the address confidentiality program under IC 5-26.5.

(d) A recorder who accepts electronic documents for recording shall:

(1) continue to accept paper documents as authorized by state law; and

(2) place entries for paper documents and electronic documents in the same index.

(e) A recorder who accepts electronic documents for recording may:

(1) convert paper documents accepted for recording into electronic form;

(2) convert into electronic form information recorded before the county recorder began to accept and index electronic documents; or

(3) agree with other officials of a state or a political subdivision of a state, or of the United States, on procedures or processes to facilitate the electronic satisfaction of prior approvals and conditions precedent to recording and the electronic payment of fees and taxes.



President of the Senate

President Pro Tempore

Speaker of the House of Representatives

Governor of the State of Indiana

Date: _____ Time: _____

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